COMMERCIAL AGREEMENT - RECORD 008

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-008

1. Recitals and defined terms

This Systems Integration Reseller Agreement is made between Helioscope Robotics, Inc. as Provider and Harborline Systems GmbH as Reseller, a industrial automation business organised in Bavaria, contracting through Harborline Systems GmbH. Harborline and the Provider have agreed that terms defined in the recitals and in Exhibit D carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

Harborline may require that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Intended effect: time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Harborline runs 1 site from Bavaria in industrial automation, so the Systems Integration Reseller Agreement is administered locally and this clause is applied per site. Administration of this obligation for Harborline sits with the account team rather than with central contracts, and Article 18 (Assignment) is where it is evidenced.

The parties have recorded in Exhibit C that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Operationally, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. This bites at Harborline's 1 site, since a industrial automation operator administers the Systems Integration Reseller Agreement where the units work. The obligation as it applies to Harborline was tightened at signature, and Article 12 (Intellectual Property) carries the negotiated wording rather than the standard wording.

Read with Schedule 2, either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. In substance, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. This bites at Harborline's 1 site, since a industrial automation operator administers the Systems Integration Reseller Agreement where the units work. Where Harborline has raised a query the Provider has answered by reference to Article 2 (Definitions), and the exchange is on the contract file.

On the terms of Exhibit B, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. As agreed, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. In industrial automation the burden of this sits with operations, and Harborline discharges it across 1 site under the Systems Integration Reseller Agreement. The Harborline relationship is managed against Article 3 (Scope of Supply) at each quarterly review, and any variance is minuted there rather than in the Order.

Harborline reseller agreement - Exhibit A - Fee Schedule and Annual Escalator

Harborline fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
HAR-F001	lift attachment	18	$5,277	$94,986	2.8%	on renewal only
HAR-F002	fleet controller	25	$5,992	$149,800	5.0%	annually each January
HAR-F003	fleet controller	17	$7,353	$125,001	3.3%	annually each January
HAR-F004	AMR-400 heavy unit	10	$3,887	$38,870	2.5%	annually each January
HAR-F005	tote carrier	30	$7,686	$230,580	5.9%	not escalated
HAR-F006	fleet controller	17	$9,304	$158,168	3.7%	on renewal only
HAR-F007	lift attachment	32	$7,828	$250,496	2.5%	on renewal only
HAR-F008	tote carrier	30	$2,031	$60,930	4.8%	annually each January
HAR-F009	safety scanner kit	11	$2,703	$29,733	4.0%	on renewal only
HAR-F010	lift attachment	38	$3,657	$138,966	5.3%	on renewal only
HAR-F011	fleet controller	22	$1,737	$38,214	4.3%	not escalated
HAR-F012	charge dock	41	$5,850	$239,850	3.9%	not escalated
HAR-F013	AMR-400 heavy unit	13	$6,386	$83,018	2.0%	annually each January

Harborline fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
HAR-F014	charge dock	30	$2,521	$75,630	5.2%	on renewal only
HAR-F015	AMR-200 mobile unit	9	$4,878	$43,902	2.9%	on renewal only
HAR-F016	lift attachment	23	$4,817	$110,791	4.9%	on renewal only
HAR-F017	AMR-400 heavy unit	12	$4,825	$57,900	2.2%	annually on the anniversary
HAR-F018	lift attachment	17	$2,377	$40,409	2.1%	not escalated
HAR-F019	tote carrier	10	$8,778	$87,780	5.1%	not escalated
HAR-F020	AMR-200 mobile unit	32	$5,011	$160,352	5.6%	on renewal only
HAR-F021	lift attachment	28	$9,302	$260,456	4.3%	on renewal only
HAR-F022	lift attachment	6	$8,300	$49,800	2.9%	not escalated
HAR-F023	AMR-200 mobile unit	32	$6,959	$222,688	2.6%	annually on the anniversary
HAR-F024	AMR-200 mobile unit	33	$4,359	$143,847	3.1%	annually on the anniversary
HAR-F025	lift attachment	36	$8,471	$304,956	4.0%	not escalated
HAR-F026	lift attachment	32	$8,436	$269,952	2.3%	on renewal only
HAR-F027	charge dock	10	$7,898	$78,980	5.3%	not escalated
HAR-F028	tote carrier	29	$6,795	$197,055	3.5%	annually on the anniversary
HAR-F029	fleet controller	18	$8,721	$156,978	5.8%	annually each January
HAR-F030	fleet controller	28	$1,605	$44,940	4.9%	annually on the anniversary
HAR-F031	safety scanner kit	34	$2,338	$79,492	4.9%	annually on the anniversary
HAR-F032	gateway appliance	41	$4,013	$164,533	5.9%	on renewal only
HAR-F033	lift attachment	18	$1,572	$28,296	5.2%	annually each January
HAR-F034	safety scanner kit	20	$7,373	$147,460	2.4%	annually each January
HAR-F035	charge dock	20	$2,439	$48,780	5.8%	annually each January
HAR-F036	tote carrier	28	$8,823	$247,044	4.9%	not escalated
HAR-F037	tote carrier	37	$5,363	$198,431	2.7%	on renewal only
HAR-F038	lift attachment	4	$3,136	$12,544	3.2%	on renewal only
HAR-F039	safety scanner kit	8	$3,566	$28,528	5.5%	annually on the anniversary
HAR-F040	AMR-200 mobile unit	40	$7,672	$306,880	2.4%	annually on the anniversary
HAR-F041	fleet controller	41	$6,792	$278,472	4.3%	annually on the anniversary
HAR-F042	charge dock	36	$5,334	$192,024	4.4%	annually on the anniversary
HAR-F043	charge dock	35	$8,865	$310,275	3.7%	annually on the anniversary
HAR-F044	AMR-200 mobile unit	20	$3,928	$78,560	2.1%	annually on the anniversary
HAR-F045	charge dock	6	$5,656	$33,936	3.7%	on renewal only
HAR-F046	tote carrier	2	$3,853	$7,706	4.3%	not escalated
HAR-F047	AMR-400 heavy unit	27	$8,863	$239,301	2.1%	on renewal only
HAR-F048	safety scanner kit	23	$6,716	$154,468	2.7%	on renewal only
HAR-F049	charge dock	9	$2,645	$23,805	4.9%	annually on the anniversary
HAR-F050	tote carrier	15	$6,504	$97,560	2.1%	not escalated
HAR-F051	fleet controller	9	$6,511	$58,599	2.6%	on renewal only
HAR-F052	fleet controller	20	$7,127	$142,540	4.3%	annually on the anniversary
HAR-F053	fleet controller	16	$1,697	$27,152	5.2%	on renewal only
HAR-F054	charge dock	30	$3,348	$100,440	3.1%	annually each January
HAR-F055	AMR-200 mobile unit	15	$6,062	$90,930	5.4%	annually on the anniversary
HAR-F056	gateway appliance	7	$9,836	$68,852	5.4%	annually each January
HAR-F057	charge dock	21	$6,792	$142,632	3.0%	annually on the

Harborline fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
						anniversary
HAR-F058	tote carrier	3	$1,284	$3,852	3.9%	annually each January
HAR-F059	charge dock	15	$6,876	$103,140	5.3%	not escalated
HAR-F060	charge dock	7	$6,658	$46,606	4.1%	not escalated
HAR-F061	fleet controller	32	$4,937	$157,984	3.7%	annually on the anniversary
HAR-F062	safety scanner kit	18	$3,854	$69,372	4.6%	annually on the anniversary
HAR-F063	fleet controller	27	$7,312	$197,424	5.0%	annually each January
HAR-F064	lift attachment	6	$4,828	$28,968	5.2%	on renewal only
HAR-F065	AMR-200 mobile unit	31	$3,971	$123,101	5.5%	not escalated
HAR-F066	gateway appliance	21	$7,046	$147,966	3.3%	on renewal only
HAR-F067	lift attachment	28	$8,574	$240,072	3.2%	annually each January
HAR-F068	AMR-400 heavy unit	9	$2,634	$23,706	2.4%	on renewal only
HAR-F069	fleet controller	41	$2,752	$112,832	4.5%	on renewal only
HAR-F070	lift attachment	6	$6,020	$36,120	5.0%	on renewal only
HAR-F071	safety scanner kit	32	$9,637	$308,384	2.1%	annually on the anniversary
HAR-F072	gateway appliance	22	$7,580	$166,760	4.8%	on renewal only
HAR-F073	gateway appliance	5	$2,482	$12,410	4.5%	not escalated
HAR-F074	AMR-200 mobile unit	28	$2,771	$77,588	5.4%	not escalated
HAR-F075	lift attachment	38	$1,458	$55,404	4.7%	not escalated
HAR-F076	safety scanner kit	22	$4,404	$96,888	2.5%	not escalated
HAR-F077	fleet controller	12	$9,023	$108,276	5.0%	annually on the anniversary
HAR-F078	gateway appliance	9	$3,976	$35,784	3.7%	annually on the anniversary
HAR-F079	charge dock	7	$4,068	$28,476	2.3%	on renewal only
HAR-F080	AMR-200 mobile unit	24	$1,227	$29,448	4.5%	annually each January
HAR-F081	tote carrier	40	$1,305	$52,200	3.9%	not escalated
HAR-F082	charge dock	10	$9,811	$98,110	3.2%	annually each January
HAR-F083	AMR-200 mobile unit	37	$8,481	$313,797	3.4%	not escalated
HAR-F084	charge dock	25	$4,445	$111,125	3.6%	annually each January
HAR-F085	AMR-200 mobile unit	7	$6,971	$48,797	3.0%	on renewal only
HAR-F086	lift attachment	38	$6,463	$245,594	5.8%	annually each January
HAR-F087	tote carrier	6	$3,237	$19,422	5.2%	annually on the anniversary
HAR-F088	tote carrier	38	$8,158	$310,004	2.2%	annually each January

2. Scope of supply and orders

Save as Exhibit B otherwise provides, either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. As agreed, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Harborline treats the obligation as a site-level matter across its 1 site in Bavaria, consistent with the Systems Integration Reseller Agreement. Harborline has taken the point up once since signature; the correspondence is filed against Article 5 (Delivery and Title) and did not result in an amendment.

Harborline acknowledges that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. On the operative wording, the remedy is exclusive

for the breach it addresses, and does not displace remedies for a different breach of the same article. Running 1 site in industrial automation, Harborline takes this obligation at site level rather than centrally under the Systems Integration Reseller Agreement. The obligation as it applies to Harborline was tightened at signature, and Article 18 (Assignment) carries the negotiated wording rather than the standard wording.

Save as Schedule 3 otherwise provides, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. Strictly, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. 1 site in Bavaria means Harborline applies the Systems Integration Reseller Agreement through its regional operations team rather than through head office. The Harborline relationship is managed against Article 12 (Intellectual Property) at each quarterly review, and any variance is minuted there rather than in the Order.

For the purposes of the Systems Integration Reseller Agreement, a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. On this point, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Operating 1 site, Harborline applies the Systems Integration Reseller Agreement at the point of delivery, as industrial automation practice requires. Where Harborline has raised a query the Provider has answered by reference to Article 4 (Orders and Quantities), and the exchange is on the contract file.

3. Delivery, title and risk

As between Harborline and the Provider, telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. As to enforcement, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Bavaria is where Harborline runs industrial automation operations across 1 site, and the Systems Integration Reseller Agreement follows that footprint. Because Harborline operates in industrial automation, the practical burden of this clause falls on its Bavaria operation, and Article 17 (Transition Assistance) governs how it is measured.

Read with Exhibit A, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. In point of remedy, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Site count matters here: Harborline has 1 site, and the Systems Integration Reseller Agreement treats each as a separate delivery point. Because Harborline operates in industrial automation, the practical burden of this clause falls on its Bavaria operation, and Article 4 (Orders and Quantities) governs how it is measured.

Harborline acknowledges that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. On any reading, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Harborline treats the obligation as a site-level matter across its 1 site in Bavaria, consistent with the Systems Integration Reseller Agreement. Where Harborline has raised a query the Provider has answered by reference to Article 13 (Licences), and the exchange is on the contract file.

Neither Harborline nor the Provider may treat Article 14 (Indemnities) as permitting each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. On the operative wording, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Harborline treats the obligation as a site-level matter across its 1 site in Bavaria, consistent with the Systems Integration Reseller Agreement. Notices under Article 9 (Customer Obligations) go to the contracting entity named in the recital and not to any Harborline affiliate that may operate a site.

Harborline reseller agreement - Schedule 2 - Sites and Operating Patterns

Harborline site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
HAR-S001	Evergreen facility	32	2024-08-12	single shift	Provider furnished	not commenced
HAR-S002	Mesa facility	14	2025-05-17	two shifts	shared	pending

Harborline site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
						acceptance
HAR-S003	Larkspur facility	39	2025-03-06	single shift	Provider furnished	accepted with punch list
HAR-S004	Evergreen facility	35	2025-06-22	single shift	Provider furnished	accepted with punch list
HAR-S005	Harborline facility	39	2025-12-20	two shifts	shared	not commenced
HAR-S006	Crestline facility	24	2025-11-25	continuous	Provider furnished	not commenced
HAR-S007	Harborline facility	20	2024-12-02	continuous	Customer furnished	not commenced
HAR-S008	Juniper facility	13	2024-11-20	continuous	Customer furnished	pending acceptance
HAR-S009	Evergreen facility	14	2025-11-15	single shift	Customer furnished	accepted
HAR-S010	Granite facility	8	2026-04-27	continuous	shared	accepted
HAR-S011	Keystone facility	18	2026-06-02	single shift	shared	pending acceptance
HAR-S012	Dayton facility	5	2025-10-04	single shift	Customer furnished	accepted with punch list
HAR-S013	Keystone facility	5	2025-05-17	continuous	Customer furnished	pending acceptance
HAR-S014	Larkspur facility	34	2025-11-03	two shifts	shared	not commenced
HAR-S015	Dayton facility	5	2025-01-12	two shifts	shared	pending acceptance
HAR-S016	Dayton facility	9	2026-01-12	single shift	shared	accepted with punch list
HAR-S017	Dunbar facility	8	2025-06-08	continuous	Provider furnished	pending acceptance
HAR-S018	Granite facility	4	2025-11-25	two shifts	Customer furnished	accepted with punch list
HAR-S019	Evergreen facility	39	2026-04-03	single shift	shared	accepted
HAR-S020	Meridian facility	35	2024-01-05	continuous	Customer furnished	accepted with punch list
HAR-S021	Larkspur facility	32	2025-08-22	continuous	Provider furnished	pending acceptance
HAR-S022	Juniper facility	20	2026-03-14	two shifts	shared	pending acceptance
HAR-S023	Juniper facility	34	2026-05-09	continuous	Customer furnished	accepted with punch list
HAR-S024	Crestline facility	14	2025-12-07	two shifts	Provider furnished	not commenced
HAR-S025	Juniper facility	18	2025-05-19	single shift	Provider furnished	accepted
HAR-S026	Juniper facility	26	2024-07-20	single shift	shared	pending acceptance
HAR-S027	Dunbar facility	20	2024-07-14	continuous	shared	accepted
HAR-S028	Dayton facility	34	2026-02-24	continuous	Customer furnished	accepted with punch list
HAR-S029	Larkspur facility	23	2026-08-27	two shifts	shared	accepted
HAR-S030	Dayton facility	24	2024-11-13	two shifts	Provider furnished	not commenced
HAR-S031	Keystone facility	36	2026-04-23	two shifts	Customer furnished	pending acceptance
HAR-S032	Meridian facility	14	2024-11-02	continuous	Provider furnished	accepted
HAR-S033	Dunbar facility	29	2025-09-05	two shifts	shared	accepted
HAR-S034	Dunbar facility	39	2024-03-12	two shifts	Provider furnished	accepted with punch list
HAR-S035	Granite facility	10	2025-09-09	continuous	Provider furnished	pending acceptance
HAR-S036	Larkspur facility	21	2024-08-08	single shift	Customer furnished	accepted with punch list
HAR-S037	Meridian facility	9	2026-03-10	single shift	Customer furnished	not commenced
HAR-S038	Larkspur facility	21	2026-08-24	continuous	shared	accepted with punch list
HAR-S039	Granite facility	20	2024-07-28	single shift	shared	pending acceptance

Harborline site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
HAR-S040	Fathom facility	13	2026-06-01	two shifts	Provider furnished	not commenced
HAR-S041	Dunbar facility	30	2026-07-15	single shift	Provider furnished	accepted
HAR-S042	Crestline facility	6	2026-07-26	two shifts	Customer furnished	accepted with punch list
HAR-S043	Mesa facility	19	2026-03-21	continuous	Provider furnished	not commenced
HAR-S044	Granite facility	37	2024-03-12	two shifts	Customer furnished	not commenced
HAR-S045	Granite facility	18	2026-11-26	continuous	shared	not commenced
HAR-S046	Crestline facility	36	2024-06-10	two shifts	Provider furnished	pending acceptance
HAR-S047	Juniper facility	30	2025-12-17	single shift	Provider furnished	not commenced
HAR-S048	Harborline facility	33	2025-04-27	two shifts	Customer furnished	accepted with punch list
HAR-S049	Fathom facility	19	2024-08-20	two shifts	Provider furnished	pending acceptance
HAR-S050	Meridian facility	38	2024-07-26	continuous	shared	not commenced
HAR-S051	Evergreen facility	9	2024-08-17	two shifts	Provider furnished	pending acceptance
HAR-S052	Granite facility	39	2024-04-02	two shifts	Provider furnished	accepted with punch list
HAR-S053	Juniper facility	17	2025-08-10	two shifts	Provider furnished	accepted with punch list
HAR-S054	Keystone facility	6	2025-07-27	continuous	Provider furnished	accepted with punch list
HAR-S055	Granite facility	28	2025-12-09	continuous	Provider furnished	not commenced
HAR-S056	Juniper facility	29	2025-01-08	single shift	shared	accepted with punch list
HAR-S057	Dunbar facility	27	2024-07-27	continuous	shared	not commenced
HAR-S058	Juniper facility	35	2025-02-24	continuous	Customer furnished	accepted
HAR-S059	Larkspur facility	22	2026-02-20	single shift	Provider furnished	accepted with punch list
HAR-S060	Keystone facility	9	2026-10-03	continuous	shared	accepted
HAR-S061	Harborline facility	8	2025-08-06	single shift	shared	accepted with punch list
HAR-S062	Mesa facility	22	2025-05-11	continuous	Customer furnished	accepted with punch list
HAR-S063	Juniper facility	29	2024-09-01	two shifts	shared	accepted
HAR-S064	Dunbar facility	14	2026-04-05	single shift	Customer furnished	accepted with punch list
HAR-S065	Keystone facility	36	2025-04-15	continuous	Customer furnished	accepted with punch list
HAR-S066	Larkspur facility	38	2025-07-25	single shift	Customer furnished	pending acceptance
HAR-S067	Larkspur facility	8	2025-11-16	continuous	Customer furnished	pending acceptance
HAR-S068	Crestline facility	31	2024-03-02	continuous	Customer furnished	pending acceptance
HAR-S069	Keystone facility	31	2026-05-21	continuous	shared	accepted
HAR-S070	Fathom facility	11	2026-02-06	continuous	Customer furnished	accepted with punch list
HAR-S071	Evergreen facility	8	2026-02-05	continuous	Provider furnished	not commenced
HAR-S072	Fathom facility	26	2025-06-18	continuous	Customer furnished	pending acceptance
HAR-S073	Harborline facility	31	2024-12-18	continuous	shared	not commenced
HAR-S074	Larkspur facility	7	2025-07-05	single shift	Customer furnished	accepted with punch list
HAR-S075	Mesa facility	28	2025-05-08	two shifts	Customer furnished	not commenced
HAR-S076	Evergreen facility	18	2024-01-02	two shifts	shared	pending acceptance
HAR-S077	Dunbar facility	37	2024-12-05	single shift	Provider	pending

Harborline site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
					furnished	acceptance
HAR-S078	Mesa facility	6	2025-12-10	two shifts	Customer furnished	accepted with punch list
HAR-S079	Evergreen facility	18	2026-02-21	single shift	Customer furnished	accepted
HAR-S080	Keystone facility	39	2024-07-28	two shifts	Provider furnished	not commenced
HAR-S081	Juniper facility	28	2025-02-21	two shifts	Customer furnished	pending acceptance
HAR-S082	Keystone facility	16	2025-09-16	single shift	Customer furnished	accepted
HAR-S083	Keystone facility	21	2025-01-28	single shift	shared	not commenced
HAR-S084	Larkspur facility	4	2026-02-14	two shifts	shared	pending acceptance

4. Fees, invoicing and escalation

Save as Exhibit A otherwise provides, the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. As to enforcement, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. 1 site in Bavaria means Harborline applies the Systems Integration Reseller Agreement through its regional operations team rather than through head office. For a reseller of Harborline's size the clause is unremarkable, but Article 3 (Scope of Supply) is drafted more tightly here than in the Provider's standard form.

On the terms of Schedule 2, a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. Tighter here than standard: the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Site count matters here: Harborline has 1 site, and the Systems Integration Reseller Agreement treats each as a separate delivery point. Nothing in the Harborline negotiation history qualifies Article 21 (Governing Law and Disputes), and a reviewer should not read the pre-signature drafts as doing so.

For the purposes of the Systems Integration Reseller Agreement, on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. On timing, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Bavaria is where Harborline runs industrial automation operations across 1 site, and the Systems Integration Reseller Agreement follows that footprint. Where Harborline has raised a query the Provider has answered by reference to Article 14 (Indemnities), and the exchange is on the contract file.

Harborline Systems GmbH undertakes that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. As it bites, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Harborline runs 1 site from Bavaria in industrial automation, so the Systems Integration Reseller Agreement is administered locally and this clause is applied per site. For a reseller of Harborline's size the clause is unremarkable, but Article 8 (Acceptance) is drafted more tightly here than in the Provider's standard form.

5. Service levels and credits

Subject to Article 7 (Service Levels), on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Deliberately so: the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. This bites at Harborline's 1 site, since a industrial automation operator administers the Systems Integration Reseller Agreement where the units work. Administration of this obligation for Harborline sits with the account team rather than with central contracts, and Article 21 (Governing Law and Disputes) is where it is evidenced.

Except as Article 13 (Licences) permits, acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. In terms of consequence, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. This bites at Harborline's 1 site, since a industrial automation operator administers the Systems

Integration Reseller Agreement where the units work. For a reseller of Harborline's size the clause is unremarkable, but Article 17 (Transition Assistance) is drafted more tightly here than in the Provider's standard form.

On a proper construction of Exhibit A, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. In effect, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Bavaria is where Harborline runs industrial automation operations across 1 site, and the Systems Integration Reseller Agreement follows that footprint. Because Harborline operates in industrial automation, the practical burden of this clause falls on its Bavaria operation, and Article 15 (Limitation of Liability) governs how it is measured.

Harborline Systems GmbH undertakes that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. As drafted, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. This bites at Harborline's 1 site, since a industrial automation operator administers the Systems Integration Reseller Agreement where the units work. Harborline has taken the point up once since signature; the correspondence is filed against Article 15 (Limitation of Liability) and did not result in an amendment.

6. Acceptance and change control

Harborline retains the right, notwithstanding Article 18 (Assignment), to require that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Procedurally, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Harborline treats the obligation as a site-level matter across its 1 site in Bavaria, consistent with the Systems Integration Reseller Agreement. The Harborline relationship is managed against Article 15 (Limitation of Liability) at each quarterly review, and any variance is minuted there rather than in the Order.

Harborline may require that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Per the amendment history, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. The Systems Integration Reseller Agreement reaches each of Harborline's 1 site separately, which is how a industrial automation operator in Bavaria administers it. The obligation as it applies to Harborline was tightened at signature, and Article 7 (Service Levels) carries the negotiated wording rather than the standard wording.

As between Harborline and the Provider, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. On the operative wording, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Harborline runs 1 site from Bavaria in industrial automation, so the Systems Integration Reseller Agreement is administered locally and this clause is applied per site. Harborline has taken the point up once since signature; the correspondence is filed against Article 13 (Licences) and did not result in an amendment.

Nothing in Schedule 2 entitles Harborline to assume that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. On the mechanics, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Operating 1 site, Harborline applies the Systems Integration Reseller Agreement at the point of delivery, as industrial automation practice requires. Where Harborline has raised a query the Provider has answered by reference to Article 21 (Governing Law and Disputes), and the exchange is on the contract file.

Harborline reseller agreement - Schedule 3 - Deployment Milestones and Payment Triggers

Harborline milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
HAR-M001	steady-state handover	2026-12	28	network provisioning	$83,377	no payment attached
HAR-M002	site survey complete	2025-11	22	network provisioning	$235,215	invoiceable on acceptance
HAR-M003	integration test passed	2024-03	25	no delay	$160,291	no payment attached
HAR-M004	warranty	2024-05	9	seasonal freeze	$203,535	invoiceable on

Harborline milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
	commencement					certification
HAR-M005	units delivered	2024-06	17	seasonal freeze	$172,317	no payment attached
HAR-M006	steady-state handover	2026-07	25	labour agreement	$32,789	no payment attached
HAR-M007	units delivered	2025-07	6	seasonal freeze	$140,824	invoiceable on certification
HAR-M008	units delivered	2025-09	31	labour agreement	$198,806	invoiceable on acceptance
HAR-M009	site survey complete	2026-08	on plan	facility readiness	$262,268	invoiceable on acceptance
HAR-M010	site survey complete	2025-07	29	seasonal freeze	$51,066	no payment attached
HAR-M011	steady-state handover	2026-07	6	no delay	$99,938	no payment attached
HAR-M012	pilot acceptance	2024-05	21	seasonal freeze	$249,652	invoiceable on certification
HAR-M013	units delivered	2024-06	23	network provisioning	$218,654	no payment attached
HAR-M014	steady-state handover	2025-09	27	labour agreement	$231,630	invoiceable on certification
HAR-M015	units delivered	2025-06	24	network provisioning	$33,213	invoiceable on acceptance
HAR-M016	steady-state handover	2026-02	28	Customer IT dependency	$107,024	invoiceable on certification
HAR-M017	integration test passed	2025-02	20	seasonal freeze	$46,486	no payment attached
HAR-M018	full acceptance	2026-11	22	labour agreement	$168,316	no payment attached
HAR-M019	warranty commencement	2026-03	5	facility readiness	$140,042	invoiceable on acceptance
HAR-M020	integration test passed	2024-08	22	labour agreement	$79,456	invoiceable on acceptance
HAR-M021	site survey complete	2025-10	18	network provisioning	$102,610	invoiceable on acceptance
HAR-M022	units delivered	2025-08	23	seasonal freeze	$173,095	invoiceable on acceptance
HAR-M023	pilot acceptance	2024-05	18	facility readiness	$40,225	no payment attached
HAR-M024	warranty commencement	2025-08	5	Customer IT dependency	$18,879	invoiceable on certification
HAR-M025	warranty commencement	2024-05	3	no delay	$268,508	invoiceable on acceptance
HAR-M026	pilot acceptance	2025-09	26	seasonal freeze	$33,846	invoiceable on certification
HAR-M027	pilot acceptance	2024-01	15	network provisioning	$215,985	no payment attached
HAR-M028	pilot acceptance	2025-10	33	facility readiness	$250,600	no payment attached
HAR-M029	pilot acceptance	2024-09	24	no delay	$185,002	invoiceable on certification
HAR-M030	site survey complete	2024-02	20	network provisioning	$149,332	invoiceable on acceptance
HAR-M031	units delivered	2025-03	21	facility readiness	$232,392	invoiceable on acceptance
HAR-M032	steady-state handover	2025-11	5	Customer IT dependency	$152,382	invoiceable on certification
HAR-M033	units delivered	2026-05	16	Customer IT dependency	$215,371	no payment attached
HAR-M034	full acceptance	2024-03	25	network provisioning	$247,680	invoiceable on certification
HAR-M035	full acceptance	2025-11	23	no delay	$98,266	invoiceable on certification
HAR-M036	integration test passed	2025-04	23	network provisioning	$70,865	invoiceable on acceptance
HAR-M037	network readiness certified	2024-09	13	labour agreement	$116,636	invoiceable on acceptance
HAR-M038	site survey	2026-03	2	no delay	$181,891	invoiceable on

Harborline milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
	complete					certification
HAR-M039	full acceptance	2024-02	23	seasonal freeze	$80,684	invoiceable on certification
HAR-M040	site survey complete	2026-01	24	facility readiness	$173,118	no payment attached
HAR-M041	site survey complete	2025-01	9	labour agreement	$153,334	no payment attached
HAR-M042	units delivered	2026-06	32	Customer IT dependency	$210,555	invoiceable on acceptance
HAR-M043	pilot acceptance	2025-10	13	Customer IT dependency	$12,763	invoiceable on acceptance
HAR-M044	network readiness certified	2024-01	28	labour agreement	$222,509	invoiceable on acceptance
HAR-M045	units delivered	2024-07	3	no delay	$256,480	invoiceable on certification
HAR-M046	site survey complete	2026-12	32	facility readiness	$58,393	invoiceable on certification
HAR-M047	network readiness certified	2024-10	27	seasonal freeze	$60,565	no payment attached
HAR-M048	units delivered	2026-10	1	no delay	$30,647	invoiceable on acceptance
HAR-M049	warranty commencement	2025-06	23	seasonal freeze	$92,825	no payment attached
HAR-M050	warranty commencement	2025-03	24	seasonal freeze	$145,342	no payment attached
HAR-M051	steady-state handover	2026-05	15	facility readiness	$182,309	no payment attached
HAR-M052	site survey complete	2025-06	22	seasonal freeze	$113,282	no payment attached
HAR-M053	site survey complete	2026-08	7	Customer IT dependency	$188,925	invoiceable on acceptance
HAR-M054	warranty commencement	2026-09	27	facility readiness	$176,031	invoiceable on certification
HAR-M055	site survey complete	2024-06	19	no delay	$240,532	no payment attached
HAR-M056	pilot acceptance	2024-06	25	labour agreement	$55,326	invoiceable on acceptance
HAR-M057	site survey complete	2024-06	28	network provisioning	$174,147	invoiceable on acceptance
HAR-M058	steady-state handover	2024-01	2	network provisioning	$107,660	invoiceable on acceptance
HAR-M059	site survey complete	2024-10	12	seasonal freeze	$134,697	invoiceable on acceptance
HAR-M060	full acceptance	2025-10	8	labour agreement	$219,047	no payment attached
HAR-M061	warranty commencement	2024-11	29	no delay	$211,845	invoiceable on certification
HAR-M062	warranty commencement	2025-11	17	seasonal freeze	$129,599	invoiceable on acceptance
HAR-M063	warranty commencement	2026-01	5	facility readiness	$236,296	invoiceable on acceptance
HAR-M064	pilot acceptance	2026-03	5	network provisioning	$19,246	invoiceable on certification
HAR-M065	pilot acceptance	2024-10	32	no delay	$214,263	no payment attached
HAR-M066	network readiness certified	2024-08	21	facility readiness	$101,597	invoiceable on acceptance
HAR-M067	integration test passed	2025-03	5	seasonal freeze	$27,041	invoiceable on acceptance
HAR-M068	warranty commencement	2025-07	32	facility readiness	$146,176	invoiceable on certification
HAR-M069	warranty commencement	2024-05	on plan	network provisioning	$215,328	invoiceable on certification
HAR-M070	warranty commencement	2026-10	28	network provisioning	$250,230	invoiceable on acceptance
HAR-M071	warranty commencement	2026-05	12	facility readiness	$112,076	no payment attached
HAR-M072	steady-state	2025-09	5	Customer IT	$100,913	no payment

Harborline milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
	handover			dependency		attached
HAR-M073	site survey complete	2026-09	19	seasonal freeze	$93,776	no payment attached
HAR-M074	network readiness certified	2025-07	17	network provisioning	$116,195	no payment attached
HAR-M075	integration test passed	2026-06	29	labour agreement	$37,060	invoiceable on acceptance
HAR-M076	pilot acceptance	2025-02	11	facility readiness	$12,553	no payment attached
HAR-M077	site survey complete	2026-11	19	no delay	$190,109	no payment attached
HAR-M078	units delivered	2025-06	21	network provisioning	$103,796	no payment attached
HAR-M079	units delivered	2026-01	1	facility readiness	$97,980	invoiceable on certification
HAR-M080	network readiness certified	2024-08	20	no delay	$230,704	invoiceable on acceptance
HAR-M081	site survey complete	2024-07	30	Customer IT dependency	$192,739	invoiceable on certification
HAR-M082	steady-state handover	2026-10	23	seasonal freeze	$82,977	invoiceable on acceptance
HAR-M083	integration test passed	2025-02	2	labour agreement	$177,967	no payment attached
HAR-M084	full acceptance	2026-01	1	labour agreement	$133,629	invoiceable on acceptance
HAR-M085	steady-state handover	2026-11	8	network provisioning	$177,253	no payment attached
HAR-M086	site survey complete	2026-06	1	seasonal freeze	$24,616	invoiceable on acceptance

7. Data, intellectual property and licences

Harborline pays the fees under Exhibit B in consideration of the Provider's undertaking that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. In effect, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Because Harborline is a Bavaria industrial automation business with 1 site, the Systems Integration Reseller Agreement devolves this to the site manager. Because Harborline operates in industrial automation, the practical burden of this clause falls on its Bavaria operation, and Article 5 (Delivery and Title) governs how it is measured.

Nothing in Schedule 3 entitles Harborline to assume that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. In effect, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. In industrial automation the burden of this sits with operations, and Harborline discharges it across 1 site under the Systems Integration Reseller Agreement. The Harborline file records the position as at the last amendment, and Article 17 (Transition Assistance) is the reference a reviewer should cite when raising it.

Harborline has agreed, and the Provider has accepted, that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. As between them, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Running 1 site in industrial automation, Harborline takes this obligation at site level rather than centrally under the Systems Integration Reseller Agreement. The Harborline relationship is managed against Article 11 (Data and Telemetry) at each quarterly review, and any variance is minuted there rather than in the Order.

Harborline retains the right, notwithstanding Article 20 (Notices), to require that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. As it bites, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Because Harborline is a Bavaria industrial automation business with 1 site, the Systems Integration Reseller Agreement devolves this to the site manager. Where Harborline has raised a query the Provider has answered by reference to Article 3 (Scope of Supply), and the exchange is on the contract file.

8. Indemnities and limitation of liability

On a proper construction of Exhibit A, the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. As it bites, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Harborline runs 1 site from Bavaria in industrial automation, so the Systems Integration Reseller Agreement is administered locally and this clause is applied per site. Administration of this obligation for Harborline sits with the account team rather than with central contracts, and Article 21 (Governing Law and Disputes) is where it is evidenced.

Harborline Systems GmbH has notified the Provider that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On any reading, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Bavaria is where Harborline runs industrial automation operations across 1 site, and the Systems Integration Reseller Agreement follows that footprint. Notices under Article 3 (Scope of Supply) go to the contracting entity named in the recital and not to any Harborline affiliate that may operate a site.

Harborline Systems GmbH undertakes that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. In substance, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Harborline treats the obligation as a site-level matter across its 1 site in Bavaria, consistent with the Systems Integration Reseller Agreement. The Harborline file records the position as at the last amendment, and Article 3 (Scope of Supply) is the reference a reviewer should cite when raising it.

On the terms of Schedule 2, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. As to enforcement, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Running 1 site in industrial automation, Harborline takes this obligation at site level rather than centrally under the Systems Integration Reseller Agreement. The Harborline relationship is managed against Article 18 (Assignment) at each quarterly review, and any variance is minuted there rather than in the Order.

Harborline reseller agreement - Exhibit C - Service Levels and Credit Ladder

Harborline service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
HAR-L001	resolution time	96.5%	9% of monthly fee	11% of monthly fee	no exclusion	credit then termination right
HAR-L002	response time	91.6%	8% of monthly fee	27% of monthly fee	excluding Customer-caused outage	credit then termination right
HAR-L003	resolution time	95.8%	11% of monthly fee	25% of monthly fee	no exclusion	credit only
HAR-L004	availability	92.8%	4% of monthly fee	28% of monthly fee	excluding force majeure	credit then termination right
HAR-L005	response time	93.2%	7% of monthly fee	9% of monthly fee	no exclusion	credit then termination right
HAR-L006	throughput	97.4%	10% of monthly fee	24% of monthly fee	no exclusion	credit only
HAR-L007	availability	98.6%	4% of monthly fee	29% of monthly fee	excluding force majeure	credit only
HAR-L008	availability	98.2%	9% of monthly fee	16% of monthly fee	no exclusion	credit then termination right
HAR-L009	availability	96.3%	1% of monthly fee	17% of monthly fee	excluding Customer-caused outage	credit only
HAR-L010	response time	95.7%	2% of monthly fee	8% of monthly fee	excluding Customer-caused outage	credit only
HAR-L011	resolution time	91.9%	9% of monthly fee	5% of monthly fee	excluding scheduled maintenance	credit only
HAR-L012	throughput	90.9%	1% of monthly fee	27% of monthly fee	excluding scheduled maintenance	credit only
HAR-L013	response time	91.7%	8% of monthly	5% of monthly	excluding	credit only

Harborline service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	scheduled maintenance	
HAR-L014	response time	93.1%	4% of monthly fee	14% of monthly fee	no exclusion	credit only
HAR-L015	throughput	90.7%	3% of monthly fee	13% of monthly fee	excluding scheduled maintenance	credit then termination right
HAR-L016	response time	90.9%	8% of monthly fee	7% of monthly fee	excluding scheduled maintenance	credit then termination right
HAR-L017	resolution time	92.0%	4% of monthly fee	9% of monthly fee	excluding force majeure	credit only
HAR-L018	response time	93.7%	3% of monthly fee	29% of monthly fee	excluding scheduled maintenance	credit only
HAR-L019	response time	90.8%	10% of monthly fee	25% of monthly fee	excluding force majeure	credit then termination right
HAR-L020	availability	91.1%	9% of monthly fee	5% of monthly fee	no exclusion	credit then termination right
HAR-L021	availability	97.7%	7% of monthly fee	8% of monthly fee	excluding Customer-caused outage	credit only
HAR-L022	resolution time	93.0%	3% of monthly fee	22% of monthly fee	excluding Customer-caused outage	credit then termination right
HAR-L023	throughput	92.1%	5% of monthly fee	7% of monthly fee	excluding Customer-caused outage	credit only
HAR-L024	throughput	94.1%	9% of monthly fee	21% of monthly fee	excluding scheduled maintenance	credit then termination right
HAR-L025	response time	94.2%	10% of monthly fee	24% of monthly fee	no exclusion	credit only
HAR-L026	resolution time	92.4%	6% of monthly fee	8% of monthly fee	no exclusion	credit then termination right
HAR-L027	resolution time	92.7%	4% of monthly fee	18% of monthly fee	excluding Customer-caused outage	credit only
HAR-L028	throughput	96.6%	5% of monthly fee	19% of monthly fee	excluding force majeure	credit then termination right
HAR-L029	throughput	92.1%	3% of monthly fee	24% of monthly fee	no exclusion	credit only
HAR-L030	throughput	90.0%	12% of monthly fee	29% of monthly fee	no exclusion	credit only
HAR-L031	throughput	93.7%	9% of monthly fee	16% of monthly fee	excluding Customer-caused outage	credit then termination right
HAR-L032	availability	90.8%	10% of monthly fee	25% of monthly fee	excluding Customer-caused outage	credit only
HAR-L033	throughput	98.7%	7% of monthly fee	19% of monthly fee	excluding scheduled maintenance	credit only
HAR-L034	resolution time	90.2%	11% of monthly fee	27% of monthly fee	excluding force majeure	credit then termination right
HAR-L035	throughput	92.4%	1% of monthly fee	30% of monthly fee	excluding scheduled maintenance	credit then termination right
HAR-L036	response time	90.0%	11% of monthly fee	12% of monthly fee	excluding scheduled maintenance	credit then termination right
HAR-L037	availability	92.3%	6% of monthly fee	26% of monthly fee	excluding scheduled maintenance	credit then termination right
HAR-L038	availability	96.1%	5% of monthly fee	18% of monthly fee	excluding scheduled maintenance	credit then termination right
HAR-L039	resolution time	97.8%	12% of monthly fee	8% of monthly fee	no exclusion	credit only

Harborline service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
HAR-L040	throughput	92.9%	10% of monthly fee	28% of monthly fee	no exclusion	credit then termination right
HAR-L041	throughput	98.1%	3% of monthly fee	17% of monthly fee	excluding scheduled maintenance	credit then termination right
HAR-L042	throughput	97.8%	3% of monthly fee	7% of monthly fee	excluding Customer-caused outage	credit only
HAR-L043	availability	93.2%	6% of monthly fee	22% of monthly fee	excluding Customer-caused outage	credit then termination right
HAR-L044	response time	97.3%	8% of monthly fee	23% of monthly fee	no exclusion	credit then termination right
HAR-L045	response time	90.8%	3% of monthly fee	12% of monthly fee	no exclusion	credit only
HAR-L046	availability	94.0%	12% of monthly fee	26% of monthly fee	excluding force majeure	credit then termination right
HAR-L047	throughput	90.8%	6% of monthly fee	6% of monthly fee	no exclusion	credit then termination right
HAR-L048	resolution time	92.6%	7% of monthly fee	24% of monthly fee	excluding scheduled maintenance	credit only
HAR-L049	response time	92.8%	8% of monthly fee	5% of monthly fee	excluding scheduled maintenance	credit only
HAR-L050	throughput	97.8%	3% of monthly fee	20% of monthly fee	excluding Customer-caused outage	credit only
HAR-L051	availability	92.0%	12% of monthly fee	29% of monthly fee	no exclusion	credit then termination right
HAR-L052	resolution time	92.0%	3% of monthly fee	25% of monthly fee	no exclusion	credit then termination right
HAR-L053	response time	92.1%	9% of monthly fee	9% of monthly fee	excluding Customer-caused outage	credit then termination right
HAR-L054	resolution time	93.0%	9% of monthly fee	18% of monthly fee	excluding scheduled maintenance	credit then termination right
HAR-L055	throughput	97.1%	10% of monthly fee	21% of monthly fee	excluding scheduled maintenance	credit then termination right
HAR-L056	availability	94.2%	2% of monthly fee	28% of monthly fee	excluding force majeure	credit then termination right
HAR-L057	response time	96.1%	2% of monthly fee	25% of monthly fee	excluding scheduled maintenance	credit then termination right
HAR-L058	throughput	95.2%	11% of monthly fee	22% of monthly fee	no exclusion	credit only
HAR-L059	availability	98.5%	3% of monthly fee	20% of monthly fee	excluding force majeure	credit then termination right
HAR-L060	availability	94.4%	10% of monthly fee	25% of monthly fee	excluding Customer-caused outage	credit then termination right
HAR-L061	availability	90.1%	3% of monthly fee	29% of monthly fee	excluding force majeure	credit then termination right
HAR-L062	resolution time	96.3%	10% of monthly fee	15% of monthly fee	no exclusion	credit then termination right
HAR-L063	availability	93.1%	7% of monthly fee	7% of monthly fee	excluding scheduled maintenance	credit then termination right
HAR-L064	availability	97.6%	5% of monthly fee	12% of monthly fee	excluding force majeure	credit then termination right
HAR-L065	resolution time	95.4%	10% of monthly fee	15% of monthly fee	excluding Customer-caused outage	credit then termination right
HAR-L066	availability	91.7%	9% of monthly fee	18% of monthly fee	excluding Customer-caused outage	credit then termination right
HAR-L067	availability	93.8%	7% of monthly	17% of monthly	excluding force	credit only

Harborline service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	majeure	
HAR-L068	availability	91.8%	2% of monthly fee	12% of monthly fee	excluding Customer-caused outage	credit only
HAR-L069	response time	98.0%	12% of monthly fee	5% of monthly fee	no exclusion	credit only
HAR-L070	resolution time	93.7%	6% of monthly fee	20% of monthly fee	no exclusion	credit then termination right
HAR-L071	throughput	94.9%	5% of monthly fee	6% of monthly fee	no exclusion	credit only
HAR-L072	throughput	95.0%	4% of monthly fee	23% of monthly fee	excluding scheduled maintenance	credit only
HAR-L073	response time	91.3%	1% of monthly fee	12% of monthly fee	excluding force majeure	credit only
HAR-L074	response time	98.3%	5% of monthly fee	8% of monthly fee	excluding force majeure	credit then termination right
HAR-L075	availability	95.0%	11% of monthly fee	28% of monthly fee	no exclusion	credit only
HAR-L076	resolution time	96.4%	8% of monthly fee	16% of monthly fee	excluding Customer-caused outage	credit then termination right
HAR-L077	throughput	91.8%	8% of monthly fee	15% of monthly fee	excluding force majeure	credit then termination right
HAR-L078	throughput	92.2%	5% of monthly fee	7% of monthly fee	excluding force majeure	credit then termination right
HAR-L079	throughput	94.9%	10% of monthly fee	22% of monthly fee	excluding force majeure	credit only
HAR-L080	availability	98.5%	7% of monthly fee	27% of monthly fee	no exclusion	credit then termination right

9. Term, termination and transition

Article 6 (Fees and Payment) of the Systems Integration Reseller Agreement is to be construed so that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. As a remedy, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Harborline treats the obligation as a site-level matter across its 1 site in Bavaria, consistent with the Systems Integration Reseller Agreement. The Harborline relationship is managed against Article 18 (Assignment) at each quarterly review, and any variance is minuted there rather than in the Order.

Harborline Systems GmbH is entitled to require that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. As between them, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Harborline treats the obligation as a site-level matter across its 1 site in Bavaria, consistent with the Systems Integration Reseller Agreement. Because Harborline operates in industrial automation, the practical burden of this clause falls on its Bavaria operation, and Article 13 (Licences) governs how it is measured.

Harborline may require that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. By design, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. The Systems Integration Reseller Agreement reaches each of Harborline's 1 site separately, which is how a industrial automation operator in Bavaria administers it. Notices under Article 17 (Transition Assistance) go to the contracting entity named in the recital and not to any Harborline affiliate that may operate a site.

Harborline Systems GmbH is entitled to require that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Deliberately so: an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Operating 1 site, Harborline applies the Systems Integration Reseller Agreement at the point of delivery, as industrial automation practice requires. Administration of this obligation for Harborline sits with the account team rather than with central contracts, and Article 13 (Licences) is where it is evidenced.

10. Assignment, notices and general

Under Article 8 (Acceptance) of the Systems Integration Reseller Agreement, the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. As agreed, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Operating 1 site, Harborline applies the Systems Integration Reseller Agreement at the point of delivery, as industrial automation practice requires. Administration of this obligation for Harborline sits with the account team rather than with central contracts, and Article 2 (Definitions) is where it is evidenced.

Neither Harborline nor the Provider may treat Article 7 (Service Levels) as permitting either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. Practically, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Because Harborline is a Bavaria industrial automation business with 1 site, the Systems Integration Reseller Agreement devolves this to the site manager. Notices under Article 13 (Licences) go to the contracting entity named in the recital and not to any Harborline affiliate that may operate a site.

Harborline pays the fees under Schedule 5 in consideration of the Provider's undertaking that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. As it bites, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. The Systems Integration Reseller Agreement reaches each of Harborline's 1 site separately, which is how a industrial automation operator in Bavaria administers it. Because Harborline operates in industrial automation, the practical burden of this clause falls on its Bavaria operation, and Article 2 (Definitions) governs how it is measured.

Where Article 21 (Governing Law and Disputes) applies, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. As a matter of construction, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. The Systems Integration Reseller Agreement reaches each of Harborline's 1 site separately, which is how a industrial automation operator in Bavaria administers it. Notices under Article 21 (Governing Law and Disputes) go to the contracting entity named in the recital and not to any Harborline affiliate that may operate a site.